

25STCP04273 25STCP04273

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04273 Hearing Date: June 24, 2026 Dept: 833

Boubacar Limam Ahmed, Case No. 25STCP04273

v. Hearing: June 24, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Department of Motor Vehicles, et al., Judge: Joseph Lipner

[Tentative] Order Denying

Petition for Writ of Mandate as Moot

INTRODUCTION

On June 25, 2021,

Petitioner Boubacar Limam Ahmed ("Petitioner") applied for political asylum in

the United States. (See Petition for Writ of Mandate ("Pet.") Exh. A.) The

application was granted, and Petitioner received political asylum, which was

"authorized for an indefinite period," effective as of October 20, 2021. (Ibid.) On July 16, 2025, Petitioner applied for a

driver's license from the Department of Motor Vehicles (the "DMV" or

"Respondent"). (Pet. at 3.) On or about

August 25, 2025, the DMV issued Petitioner a temporary driver's license through

November 22, 2025. (Pet. Exh. G.) Subsequently, the DMV concluded that

Petitioner's application was "incomplete." On or about August 26, 2025, the DMV

sent Petitioner a letter stating that his "[identity] documents expired in

0621." (Pet. Exh. E.) On or about September 5, 2025, the DMV sent Petitioner a

different letter requiring either a valid passport or an "approved I-797A"

document to issue his driver's license.

(Pet. Exh. F.)

On November 6, 2025, Petitioner

filed a petition for a writ of mandate under Code of Civil Procedure section

1085 and a complaint for declaratory relief and damages. The petition and complaint include the

following causes of action: (1) writ of mandate; (2) declaratory relief

pursuant to Code of Civil Procedure section 1060; (3) declaratory relief

pursuant to Government Code section 11340.5; (4) damages pursuant to Government

Code section 815.6; (5) injunctive and declaratory relief pursuant to

Government Code section 11135; and (6) violations of due process and equal

protection. In the petition for writ of

mandate, Petitioner seeks a writ compelling the DMV "to issue and activate, or

activate and submit for printing within ten court days, Petitioner's scannable,

photo-bearing California driver license." (Pet. Prayer.)

Petitioner filed an ex parte

application seeking a temporary restraining order preventing the DMV from

"refusing to issue or activate Petitioner's California driver license and from

enforcing any extra-regulatory document demand pending the OSC hearing." On

December 2, 2025, after hearing argument from the DMV's counsel, the court (Goorvitch,

J.) granted, in part, Petitioner's ex parte application, issued a mandatory

preliminary injunction directing the DMV to issue Petitioner a California

driver's license or a scannable identification card, and set a compliance

hearing for December 11, 2025 (hereafter the "December 2 Order").

On December 11, 2025, after the

first compliance hearing, the court (Goorvitch, J.) issued an "Order Clarifying

Preliminary Injunction" (hereafter, "December 11 Order"), which states in

relevant part:

At the compliance hearing, Petitioner notified the court

that he has not received his driver's license. Counsel for the DMV appeared

with two representatives of the DMV to explain the process and facilitate the

DMV's compliance with the court's preliminary injunction. Petitioner is

eligible for an "AB 60 Driver's License," which has different requirements than

a "Real ID Driver's License." Because the Real ID has federal prerequisites, this court does not have authority to order the DMV to issue a Real ID unless Petitioner complies with those requirements. The court's preliminary injunction merely requires the DMV to issue the driver's license for which Petitioner is eligible, i.e., the DMV may comply with the preliminary injunction by issuing an AB 60 Driver's License and is not required to issue any driver's license for which Petitioner is not eligible. Petitioner objected to only receiving an AB 60 driver's license "for the record," but indicated that he still wishes to proceed with that license.

....[¶]

The court ordered the DMV to issue the AB 60 driver's license assuming he complies with these ministerial requirements, as outlined at the hearing. However, the court clarifies that the DMV shall NOT issue an AB 60 driver's license if Petitioner does not comply with any of these requirements, e.g., if Petitioner fails the vision exam or the knowledge test, or if Petitioner refuses to complete the requirements. The court's preliminary injunction is contingent on Petitioner complying with all ministerial requirements to obtain an AB 60 driver's license.

(December 11 Order at 1-2.)

On

December 30, 2025, the DMV filed a status report, stating in part: "[O]n or before December 23, 2025, Mr. Boubacar Ahmed completed his interview. His application for the AB 60 driver's license is under review and currently processing in compliance with the federal ministerial requirements."

On

January 12, 2026, the court (Goorvitch, J.) held a compliance hearing and a trial setting conference. There was no appearance or contact by or for the DMV's counsel. Petitioner confirmed that he received his driver's license. Therefore, the court vacated the preliminary injunction as it was moot.

The court ordered the DMV to provide the administrative record or to file a declaration stating that there are no additional documents other than those attached to the petition on or before February 13, 2026. The DMV did not comply with this order. The court set a trial date on the petition for June 24, 2026, and set the following briefing schedule: The opening brief shall be filed and served 60 days before the hearing; the opposition brief 30 days before the hearing; and the reply 15 days before the hearing.

On

April 23, 2026, Petitioner filed his opening brief in support of the petition. The DMV did not file an opposition brief. On May 28, 2026,

Petitioner filed proof of service showing that he served the opening brief on the DMV's counsel, by e-mail, on April 30, 2026.[1] That same date, Petitioner also filed a Notice of Respondent's Non-Opposition.

STANDARD OF REVIEW

There are two essential requirements

to the issuance of a writ of traditional mandate: (1) a clear, present, and ministerial duty on the part of the respondent; and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty.

(California Ass'n for Health Services at Home v. Department of Health

Services (2007) 148 Cal.App.4th 696, 704.) "Generally, mandamus is

available to compel a public agency's performance or to correct an agency's

abuse of discretion when the action being compelled or corrected is

ministerial." (AIDS Healthcare Foundation v. Los Angeles County Dept. of

Public Health (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public

officer is required to perform in a prescribed manner in obedience to the

mandate of legal authority and without regard to his [or her] own judgment or

opinion concerning such act's propriety or impropriety, when a given state of

facts exists." (Ibid.) "Mandamus does not lie to compel a public

agency to exercise discretionary powers in a particular manner, only to

compel it to exercise its discretion in some manner." (Ibid.)

“To compel the [respondent] to take some action the [petitioner] must plead and

prove the [respondent] has failed to act, and its failure to act is arbitrary,

beyond the bounds of reason, or in derogation of the applicable legal

standards.” (Id. at 704.)

“On questions of

law arising in mandate proceedings, [the court] exercise[s] independent

judgment.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of a statute or regulation

is a question of law. (See State Farm

Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.)

DISCUSSION

A.

The First Cause of Action for Writ

of Mandate is Moot

In his first cause of action for

writ of mandate, Petitioner seeks a writ compelling the DMV “to issue and

activate, or activate and submit for printing within ten court days,

Petitioner's scannable, photo-bearing California driver license.” (Pet. Prayer ¶ 1.) On December 30, 2025, the DMV filed a status

report, stating in part: “[O]n or before December 23, 2025, Mr. Boubacar Ahmed

completed his interview. His application for the AB 60 driver's license is

under review and currently processing in compliance with the federal

ministerial requirements." On January

12, 2026, at the second compliance hearing, Petitioner confirmed that he

received his driver's license.

Therefore, the court (Goorvitch, J.) vacated the preliminary injunction

as it was moot. (Minute Order filed

January 12, 2026.) This court likewise

concludes that the petition for writ of mandate is moot because Petitioner has

received a scannable, photo-bearing California driver license, which is what he

prayed for in the petition. (See *Wilson & Wilson v. City Council of*

Redwood City (2011) 191 Cal.App.4th 1559, 1574 ["A case is considered moot

when the question addressed was at one time a live issue in the case, but has

been deprived of life because of events occurring after the judicial process

was initiated."].)

In his opening brief filed on April 23, 2026,

Petitioner does not show that the DMV has any remaining ministerial duty that

can be enforced by mandate. Petitioner

does not argue that the DMV has a ministerial duty to issue him a Real ID, as

opposed to the AB 60 driver's license that was issued. Indeed, as Judge Goorvitch already ruled, "because

the Real ID has federal prerequisites, this court does not have authority to

order the DMV to issue a Real ID unless Petitioner complies with those

requirements.” (December 11 Order at

2.) Petitioner does not show, with

evidence, that he has satisfied all requirements for a Real ID. Nor does Petitioner show, with evidence or

citation to law, that the DMV has authority to issue him some other type of driver’s

license other than the AB 60 driver’s license.

Petitioner states that he “seeks adjudication of

the legality of Respondent’s original action ... and preserved damages arising

from the delayed and unlawful withholding of identification.” (Opening Brief (“OB”) 7.) Relatedly, Petitioner asserts that the DMV’s

issuance of an AB 60 license does not moot this case “because Petitioner seeks

declaratory relief regarding the legality of DMV’s original document demands

[and] Respondent’s failure to use the required process.” (OB 8; see also Id. at 9-10.) These are not claims for writ of

mandate. The writ is designed to compel the

performance of a clear, present, and ministerial duty, not to declare

the legality or illegality of completed acts.

(See *Loeber v. Lakeside Joint School Dist.* (2024) 103 Cal.App.5th

552, 567-569.) Rather, Petitioner is

arguing that he has still-pending claims for declaratory relief and

damages. The court addresses

Petitioner’s non-writ causes of action below.

The court denies the first cause of action for

writ of mandate because it is moot.

B.

The Second, Third, Fourth, Fifth,

and Sixth Causes of Action for Declaratory Relief, Equitable Relief, and

Damages

As noted above, the petition and complaint include the following causes of

action: (1) writ of mandate; (2) declaratory relief pursuant to Code of Civil

Procedure section 1060; (3) declaratory relief pursuant to Government Code

section 11340.5; (4) damages pursuant to Government Code section 815.6; (5)

injunctive and declaratory relief pursuant to Government Code section 11135;

and (6) violations of due process and equal protection. Pursuant to the local rules, which state

that Department 833 is a specialized writs and receivers department and not a

general civil department, only a cause of action for writ of mandate and

related special proceedings are assigned to this department. (Los Angeles Superior Court Local Rules

2.8(d) and 2.9.) Local Rules 2.8(d) and

2.9 do not include claims for declaratory relief, injunctive relief, or damages

as special proceedings assigned to the writs and receivers departments. Therefore, the court transfers the second,

third, fourth, fifth, and sixth causes of action to Department 534 (formerly

Department 1) for assignment to a general civil department.

CONCLUSION

Based

on the foregoing, the court orders as follows:

1.

The court denies the first cause of action for writ of mandate as moot.

2.

The

court transfers the second, third, fourth, fifth, and sixth causes of action to

Department 534 (formerly Department 1) for assignment to a general civil

department. (Los Angeles Superior Court

Local Rules 2.8(d) and 2.9.)

IT IS SO ORDERED.

Dated: June 24,

2026

Joseph

Lipner

Superior Court Judge

[1] The opening brief

was timely filed but was served five days late.

Petitioner offered to "not oppose a reasonable request by Respondents

for up to seven calendar days' additional time to file their opposition." (Proof of Service at 2.) The DMV has not objected to the late service

or shown prejudice given Petitioner's offer that the DMV could submit its

opposition seven days late. Therefore, subject

to oral argument, the court will consider the moving papers as filed. Alternatively, should the DMV show it was

prejudiced by the late service, the court will continue the hearing so that DMV

can have additional time to file its opposition.